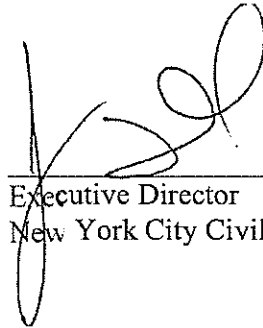


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, April 5, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-24220 against PO Florin Coste, Tax Registry No. 950241. The case was conferenced on March 24, 2022, before Assistant Deputy Commissioner of Trials Jeff S. Adler, who approved the negotiated penalty of forfeiture of six (6) vacation days, after a guilty plea.

A handwritten signature in black ink, appearing to be 'J. Adler', is written over a horizontal line.

Executive Director
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2021-24220BOOK & PAGE NO.
Page 1 of 3

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, COSTE	FIRST FLORIN	M.I. M	COMMAND MILITARY AND EXTEND LEAVE DESK
SHIELD NO. 18939	TAX REGISTRY NO. 950241	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Florin Coste, on or about November 6, 2019, at approximately 2256, while assigned to 062 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force by pointing a Taser at § 87(2)(b) without police necessity.	GUILTY	VACATION DAYS 6.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Florin Coste, on or about November 6, 2019, at approximately 2256, while assigned to 062 PCT and on duty, in the vicinity of § 87(2)(b) County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force by pointing a Taser at § 87(2)(b) without police necessity.	GUILTY	
3 . Police Officer Florin Coste, on or about November 6, 2019, at approximately 2256, while assigned to 062 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York	GUILTY	

Edward A. Cal
FIRST DEPUTY COMMISSIONER

06/09/22
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)

Yael
POLICE COMMISSIONER

9/8/22
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24220
BOOK & PAGE NO. Page 2 of 3
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, COSTE	FIRST FLORIN	M.I. M	COMMAND MILITARY AND EXTEND LEAVE DESK
SHIELD NO. 18939	TAX REGISTRY NO. 950241	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.		
4 . Police Officer Florin Coste, on or about November 6, 2019, at approximately 2256, while assigned to 062 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he threatened an individual with the use of force by pointing a Taser at the individual without police necessity.	GUILTY	
5 . Police Officer Florin Coste, on or about November 6, 2019, at approximately 2256, while assigned to 062 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he threatened another individual with the use of force by pointing a Taser at the individual without police necessity.	GUILTY	
6 . Police Officer Florin COSTE, on or about November 6, 2019, at approximately 2256, while assigned to 062 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he threatened a third individual with the use of force by pointing a Taser at the	GUILTY	

Edward A. Cab 06/09/22
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)

Gail 9/8/22
POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24220
BOOK & PAGE NO. Page <u>3</u> of <u>3</u>
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, COSTE	FIRST FLORIN	M.I. M	COMMAND MILITARY AND EXTEND LEAVE DESK
SHIELD NO. 18939	TAX REGISTRY NO. 950241	SOCIAL SECURITY NO.		DATE APPOINTED 07/06/2011
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
individual without police necessity.				

Edward A. Car 06/09/22
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)

Gulf 9/8/22
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 4, 2022

Re: DADS No. 2021-24220 involving Police Officer Florin Coste, Tax No. 950241

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Florin Coste and has determined that Police Officer Coste's conduct does not rise to the level of actionable misconduct. Police Officer Coste was faced with a chaotic situation where multiple hostile individuals arrived on the scene of a police incident. At least one of the newly-arrived individuals assaulted a complainant in the presence of Police Officer Coste. It was not unreasonable for Police Officer Coste to then draw and display his CEW in an attempt to prevent further escalation of violence.

In an attempt to disperse irate individuals from the scene, Police Officer Coste pointed his CEW at several hostile individuals. Additionally, Police Officer Coste briefly frisked one such individual in order to ensure that weapons were not being brought to the scene of escalating violence. Police Officer Coste's overall conduct was aimed at ensuring the safety of everyone on the scene, including uniformed members of the Department, while attempting to control a dangerous situation. Thus, based on the totality of the available evidence, including Body-Worn Camera footage, the actions of Police Officer Coste do not necessitate an imposition of a disciplinary penalty.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Police Officer Coste will receive no disciplinary action.

If you have any questions, please feel free to contact me at § 87(2)(g)

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.

COURTESY • PROFESSIONALISM • RESPECT

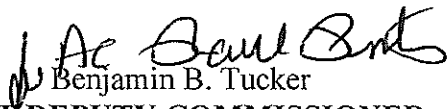
Website: <http://nyc.gov/nypd>

FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, September 9, 2022. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the First and Third Endorsements regarding Disciplinary Case No. 2021-24220 against Police Officer Florin Coste, Tax #950241. The Police Commissioner directs that the charges and specifications in this matter be dismissed and Police Officer Coste receive no disciplinary action.

Separately and apart from this negotiation process, the Police Commissioner directs that Police Officer Coste receive formalized training in Patrol Guide procedure #221-08 (Use of Conducted Electrical Weapons (CEW)).

Forwarded for your **NECESSARY ATTENTION**.


Benjamin B. Tucker
FIRST DEPUTY COMMISSIONER

BBT/me

cc: Deputy Commissioner, Risk Management Bureau
Deputy Commissioner, Trials